

25SMCV05046 25SMCV05046

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This is a motion to compel further responses. Essentially, plaintiff claims to have been wrongfully terminated and sued her employer.

Her employer offered her additional compensation if she would sign a release of all claims, including FEHA claims.

The release included the statutory protections for such waivers. Plaintiff initially refused. However, she contends that she came to be in

dire financial straits and ultimately agreed to sign the release in return for the money. Plaintiff does not contend

that she did not have adequate time (to the extent required by law) to review the document or to seek advice of counsel, and plaintiff does not contend that she revoked the agreement in the way set forth in the statute. Defendant paid plaintiff the money owed, but plaintiff has sued. Defendant's principal argument at this stage is the release, and defendant has brought a summary judgment motion to that effect.

Plaintiff contends that she was under economic duress when she signed the contract, and therefore the contract cannot be enforced. The substance of that debate will, presumably, be hashed out during the summary judgment proceedings; the court is not opining now.

What is at issue here is discovery that plaintiff propounded to defendant dealing with the circumstances of her termination and job performance—that is, the merits.

Defendant objects to that discovery on the basis that, until the MSJ is heard, it is premature. Trial is not

until December 2027, so there is plenty of time, defendant argues, for that discovery to go forward if the MSJ—currently set for July 14, 2026—is denied. Plaintiff contends that this is relevant even to that motion.

The court has at least some sympathy for defendant's argument. If the release is valid, the whole point of it is to forestall litigation—like this—and the expense of it. It undermines the value of the release if defendant has to submit to a full barrage of discovery anyway. But the court has sympathy for plaintiff's argument, too. Plaintiff needs to defeat the MSJ or she is out of court. It is understandable that she wants discovery.

The right way to have done this would have been for defendant to have sought a protective order upon being served with the discovery. First, that would have put the burden where it belongs—on the defense. There is nothing in the Discovery Act that gives the defense the right to self help in this way. If it believes that the discovery is improper because of the MSJ, the right thing to do is to ask the court to limit discovery to that topic and to set the early MSJ hearing date. Plaintiff would then have had the chance to oppose, and then we could have proceeded in an orderly fashion—either way. But defendant did not do that. Rather, defendant unilaterally refused to provide responses. And the time to oppose the MSJ has almost come and gone. Which puts us in this awkward situation.

One option is for the court to grant the motion because there is no basis in the Code to deny it. One problem with that choice is that by the time plaintiff gets the discovery, the time to oppose the motion will have run, so the motion will need to go off calendar, which the court hates to do. Another option would be to deny the motion, but to infer that any documents that exist out there would support plaintiff's case. If plaintiff can show that even hypothetically (but reasonably) there is a document that would make out her case, that would be enough to defeat the motion. After all, to win on an MSJ, defendant needs to show that plaintiff does not have now and will not have later any evidence that could create a triable issue of fact. Normally, that is shown by a paucity of evidence in opposition, but where the paucity is due to the defendant's own conduct, the inference would go the other way.

What the court will do is this. The court will inquire as to which interrogatories plaintiff believes might be relevant to the MSJ. The court will also hear from the defense, but

the court will resolve all doubts in plaintiff's favor. If there is any argument that any of the documents might rationally and reasonably be pertinent to opposing that motion, the court will grant the motion and likely continue the MSJ for some number of months. On the other hand, if plaintiff cannot articulate even a plausible reason why this information might be pertinent to opposing the MSJ, the court would be inclined to deny the motion. One way to think about it is this. Assume that the discovery would conclusively show that defendant did terminate plaintiff's employment for discriminatory reasons. Defendant's position is that it does not matter for the motion because those torts were released. For purposes of the motion only, the court assumes defendant is conceding that point, *arguendo*. So, the question for plaintiff is what she hopes to discover that would defeat the motion beyond proof that defendant fired her for unlawful reasons. That is the question to which the court seeks plaintiff's guidance.

However the motion comes out, the request for sanctions is DENIED.